



U.S. Department
of Transportation

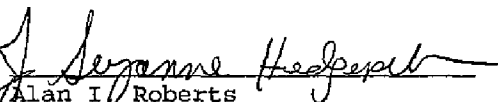
Research and
Special Programs
Administration

400 Seventh Street, N.W.
Washington, D.C. 20590

DOT-E 8571 (EXTENSION)
ORIGINAL April 6, 1981

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8571 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL - 7 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

EM Science
Cincinnati, OH

May 24, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 8571

1. MCB Manufacturing Chemists, Inc., Norwood, Ohio, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of various flammable liquids for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipment of various flammable liquids packaged in a DOT Specification DOT 12A fiberboard box, with two inside metal cans not over 10 liters capacity each, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on MCB Manufacturing Chemists, Incorporated's application dated December 22, 1980, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Various flammable liquids for which the packagings specified in §173.119(a) are provided - classed as flammable liquids.
4. PROPER SHIPPING NAME (49 CFR 172.101). Flammable liquids, n.o.s.; or the specific chemical name or generic commodity description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.119(a)(28), (b).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 12A80 corrugated fiberboard box with inside metal cans not over 10 liters capacity each. (Detailed specifications of metal cans furnished in petitioner's application.) No more than two metal cans shall be packed in a 275-pound test, double-wall, corrugated fiberboard, DOT Specification 12A80 box and gross weight must not exceed 60 pounds. The completed package shall include an inside wraparound partition and top pad to provide a tight fit, so there is no movement of the cans within the box.
8. SPECIAL PROVISIONS. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the packages must be reported to the Office of Hazardous Materials Regulation (OHMR) as soon as practicable.
10. EXPIRATION DATE. March 20, 1983.

Continuation of DOT-E 8571

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Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

APR 6 1981

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: FHWA